

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUMMONS

-----X
KEVIN MELENDEZ,
Plaintiff,

Plaintiff designates
BRONX COUNTY as the
place of trial.

-against-

CITY OF NEW YORK, POLICE OFFICER "JOHN"
ESPENBERG of the 44th Police Precinct,
Shield No 3086, POLICE OFFICER FRANCISCO
FERREIRA, SERGEANT MARIA VELIZ, "JOHN DOE
1-12," identities unknown but believed to
be New York City police officers from the
44th Police Precinct who assisted in arrest
and assault of plaintiff;
Defendants.

The basis of venue
is: County of
Occurrence CPLR
504(3)

Plaintiff resides at
1712 Davidson Avenue
Bronx, NY 10453

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: MINEOLA, NEW YORK
January 10, 2019



Steve J Marchelos
MARCHELOS LAW P.C.
Attorneys for Plaintiff(s)
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO:

CITY OF NEW YORK, 100 Church Street, New York, NY 10007

POLICE OFFICER "JOHN" ESPENBERG of the 44th Police Precinct,

Shield No 3086
c/o the 44th Police Precinct
2 East 169 Street, Bronx, NY, 10452

POLICE OFFICER FRANCISCO FERREIRA
c/o the 44th Police Precinct
2 East 169 Street, Bronx, NY, 10452

SERGEANT MARIA VELIZ
c/o the 44th Police Precinct
2 East 169 Street, Bronx, NY, 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KEVIN MELENDEZ,
Plaintiff,

VERIFIED COMPLAINT

-against-

Index No:

CITY OF NEW YORK, POLICE OFFICER "JOHN"
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FERREIRA, SERGEANT MARIA VELIZ, "JOHN DOE
1-12," identities unknown but believed to
be New York City police officers from the
44th Police Precinct who assisted in arrest
and assault of plaintiff;
Defendants.

-----X
KEVIN MELENDEZ, by his attorneys, MARCHELOS LAW P.C.,
alleges the following, upon information and belief, as his
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' unlawful and improper arrest, assault, verbal
abuse, battery, and use of excessive force upon plaintiff on
November 3, 2017;

2. Plaintiff seeks declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. §2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C. §§
1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks
compensatory and punitive damages under State Law Tort claims;

JURISDICTION

3. This action is predicated upon violations of plaintiff's Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of Bronx because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

5. That on January 31, 2018, plaintiff caused a Notice of Claim to be served upon defendant, CITY OF NEW YORK;

6. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

8. That on June 25, 2018, plaintiff presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which

gave rise to this action;

9. The defendant, CITY OF NEW YORK, never requested a physical exam;

10. Defendant, CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time;

11. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

12. Plaintiff, KEVIN MELENDEZ, was and continues to be a resident of the State of New York, County of Bronx;

13. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

14. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

15. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER "JOHN" ESPENBERG, first name unknown, but believed to wear shield number 3086;

16. At all times relevant, defendant, POLICE OFFICER ESPENBERG was a duly appointed and acting police officer of the CITY OF NEW YORK;

17. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER FRANCISCO FERREIRA;

18. At all times relevant, defendant, POLICE OFFICER FRANCISCO FERREIRA was a duly appointed and acting police officer of the CITY OF NEW YORK;

19. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, SERGEANT MARIA VELIZ;

20. At all times relevant, defendant, SERGEANT MARIA VELIZ was a duly appointed and acting sergeant of the CITY OF NEW YORK;

21. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendants identified herein only as "JOHN DOE 1-12", identities unknown but believed to be New York City police officers from the 44th Police Precinct who assisted in arrest and assault of plaintiff along with the named officers, herein;

22. At all times relevant, defendants, "JOHN DOE 1-12" were duly appointed and acting police officers of the CITY OF NEW YORK;

23. At all times relevant, the individual defendants were acting under the color of State Law;

24. At all times relevant, the individual defendants were acting both in their individual and official capacity as

employees of defendant CITY OF NEW YORK;

25. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

26. That on or about November 3, 2017 at approximately 3:45 a.m. of that day, plaintiff, KEVIN MELENDEZ, was falsely and unlawfully arrested, assaulted and battered by defendant, CITY OF NEW YORK, its agents, servants and/or employees while he was on the sidewalk in front of 39 East 170th Street, Bronx, NY, between Townsend Avenue and Walton Avenue;

27. That at the above mentioned date and location, and just prior to his confrontation with defendants, plaintiff was attacked and slashed in the face by an unknown assailant, started bleeding profusely and had fallen to the ground in pain;

28. That before plaintiff could seek medical aid and assistance at the nearest hospital, the defendant police officers arrived at the scene;

29. That at the above mentioned date, time and location, plaintiff was approached by defendants and was unjustifiably assaulted, battered, verbally and physically abused for no apparent reason;

30. That at the above mentioned date, time and location, the defendants beat plaintiff with excessive force, clubbed him with night sticks, kicked, stomped, kneed and cursed him all while he was in handcuffs lying on the ground and bleeding from his previously inflicted wound;

31. That at the above mentioned date, time and location, the defendants pulled out a taser unit and pressed it against plaintiff's back while he was in handcuffs lying on the ground and bleeding from his previously inflicted wound;

32. That at the above mentioned date, time and location, plaintiff had done nothing to warrant this attack perpetrated by the defendants;

33. That shortly after the arrest and assault, the ambulance arrived and the police officers put plaintiff in the ambulance and escorted him to Lincoln Medical Center, located at 234 East 149th Street, Bronx, NY 10451;

34. That upon information and belief, plaintiff remained in police custody while he received medical treatment and care at Lincoln Medical Center;

35. That sometime during plaintiff's stay at Lincoln Medical Center, he was released from police custody and eventually discharged from the hospital to his home;

36. That at the above mentioned date time and location, no probable cause existed to suggest that plaintiff committed any

act, crime or offense that would justify the assault and arrest by defendants;

37. That despite being handcuffed and physically assaulted by police, Plaintiff was not charged with any crime nor brought to a police precinct;

38. That no formal charges were ever proffered against plaintiff from this encounter with the police;

39. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff;

40. That the physical assault and battery was unjustified and excessive by the individual defendants as plaintiff did not commit any act which would provoke such a violent response from the defendants;

41. That plaintiff had knowledge of his confinement;

42. That plaintiff did not consent to the confinement;

43. That plaintiff was prevented from leaving the confinement;

44. That plaintiff sustained great fear, physical harm, emotional harm in the form of fear, anxiety and stress, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and

stress and physical injuries which required medical treatment and caused him to incur, and/or be responsible for the cost for medical care;

45. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHT
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

47. As a result of the aforescribed actions, including the arrest of plaintiff without probable cause, the defendants, POLICE OFFICER "JOHN" ESPENBERG, POLICE OFFICER FRANCISCO FERREIRA, SERGEANT MARIA VELIZ and the officers designated "JOHN DOE 1-12, individually deprived plaintiff of the **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

48. As a result of the aforescribed actions, these defendants individually deprived plaintiff, of the **right to be free from unreasonable search and seizures** secured by the

Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

49. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

50. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, and assault of plaintiff, these defendants individually deprived plaintiff of **Equal Protection under the Law** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

51. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause;

52. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

53. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

54. As a result of the foregoing, plaintiff has suffered

damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHT
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON USE OF EXCESSIVE
FORCE**

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

56. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, POLICE OFFICER "JOHN" ESPENBERG, POLICE OFFICER FRANCISCO FERREIRA, SERGEANT MARIA VELIZ and the officers designated "JOHN DOE 1-12", individually deprived plaintiff of the **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

57. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the **right to be free from unreasonable seizures** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

58. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his **right to liberty** without due process of law secured by the Constitution

and laws of the United States and the Fifth and Fourteenth Amendments;

59. As a result of the aforescribed actions, including the patently offensive physical conduct, threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff of **Equal Protection under the Law** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

60. The aforescribed conduct by these defendants was racially motivated and instigated by defendants for other than lawful reasons and without probable cause;

61. The amount and type of physical force used upon plaintiff by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

62. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

63. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

64. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical

and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

65. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON DEFENDANT'S
FAILURE TO SUPERVISE AND TRAIN ITS POLICE
OFFICERS IN APPROPRIATE USE OF FORCE CREATING
A POLICY, CUSTOM, PRACTICE OR CULTURE OF
DELIBERATE INDIFFERENCE TO THE RIGHTS OF
INJURED CITIZENS OF THIS CITY WHO REQUIRE
MEDICAL TREATMENT AND AID (MONELL)**

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

67. That the afore-described actions, including the manner in which defendant, CITY OF NEW YORK, supervised and trained its police officers in the appropriate use of force, created a policy, custom, practice or culture of deliberate indifference to the rights of injured citizens of this City who require medical treatment and aid and violated the plaintiff's civil rights;

68. That the afore-described actions, including the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its custom, policy and practice in the

use of physical force, including recognizing and respecting the constitutional boundaries for the use of such force, demonstrates a reckless disregard for the civil rights of lawful citizens, including the plaintiff herein;

69. That the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its custom policy and practice in the use of physical force, including recognizing and respecting the constitutional boundaries of the use of such force, has been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

70. That the reckless disregard for the deficient manner in which this defendant, CITY OF NEW YORK, permitted its custom, practice and policy of using physical force to be implemented and/or continued, has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

71. That the reckless disregard for the deficient and improper manner in which its officers have been trained to properly use physical force has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

72. That the reckless disregard for the deficient manner in which its officers have been supervised in the proper use of physical force has also been known to the supervisory policy

making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

73. That despite its knowledge of repeated abuse of its lawful policies, customs and practices regarding the use of physical force, the supervisory and policy making employees of defendant, CITY OF NEW YORK, have not taken steps to terminate the known departure from same, have not disciplined or otherwise properly supervised or retrained the officers who engaged in said departures, have not condemned or otherwise discouraged said practices, have not effectively trained or retrained employees with regard to proper use of physical force or the manner in which it should be employed and the circumstances when it should be employed, and have instead sanctioned the manner in which its officers have implemented this policy and practice as previously described through their deliberate indifference to the effect the departure of such policy and practices has on the constitutional rights of the general public, including residents and visitors of the CITY OF NEW YORK and the plaintiff herein;

74. That defendant, CITY OF NEW YORK, by and through its policy making agents, servants and/or employees, having sanctioned this departure from its lawful policy, custom and practice relating to the use of force, have caused a violation of the civil rights of plaintiff and are vicariously liable to the plaintiff for injuries resulting from violations of the Fourth,

Fifth and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

75. As a result of the acts stated above, plaintiff has suffered a deprivation of liberty without probable cause, denial of due process, invasion of privacy, damage to character and reputation, mental stress and anxiety, and plaintiff will continue to suffer same in the future;

76. As a result of the acts stated above, plaintiff was compelled to and did incur expenses as a result, and were caused great social embarrassment in their community;

77. As a result of the foregoing, plaintiff has suffered damages;

FOURTH CAUSE OF ACTION FOR ASSAULT

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

79. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

80. As a result of the foregoing, plaintiff has suffered damages;

FIFTH CAUSE OF ACTION FOR BATTERY

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

82. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing serious physical and emotional harm to plaintiff;

83. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff;

84. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

85. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR FALSE ARREST

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

87. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

88. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

89. That the occurrence, damages and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

90. As a result of the foregoing, plaintiff has suffered damages;

**SEVENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

92. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

93. As a result of the foregoing, plaintiff has suffered damages;

**EIGHTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

95. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

96. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

97. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised,

controlled, managed, maintained and inspected the activities of its police officers;

98. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

99. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

100. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated and falsely arrested plaintiff causing serious personal injury to plaintiff;

101. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the

defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

102. As a result of the foregoing, plaintiff has suffered damages;

NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

103. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

104. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants, POLICE OFFICER ESPENBERG, POLICE OFFICER FRANCISCO FERREIRA, SERGEANT MARIA VELIZ and the officers designated "JOHN DOE 1-12";

105. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of these defendants which reflects an utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

106. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety

and well being of plaintiff;

107. As a result of the foregoing, defendants, including defendant, POLICE OFFICER ESPENBERG, POLICE OFFICER FRANCISCO FERREIRA, SERGEANT MARIA VELIZ and the officers designated "JOHN DOE 1-12" should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

108. As a result of the foregoing, plaintiff has suffered damages;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural right to be free from unreasonable searches and seizures under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the unlawful arrest of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's substantive and procedural right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution predicated upon defendant's failure to supervise and train its police officers in appropriate use of force

creating a policy, custom, practice or culture of deliberate indifference to the rights of injured citizens of this City was violated (Monell claim);

(B) As to the first through eighth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

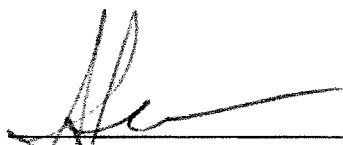
(C) As to the first through ninth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through ninth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through third causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: January 11, 2019
Mineola, New York



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
KEVIN MELENDEZ
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
January 11, 2019



Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KEVIN MELENDEZ,
Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER "JOHN" ESPENBERG of the 44th
Police Precinct, Shield No 3086, POLICE OFFICER FRANCISCO
FERREIRA, SERGEANT MARIA VELIZ, "JOHN DOE 1-12," identities
unknown but believed to be New York City police officers from the
44th Police Precinct who assisted in arrest and assault of
plaintiff;
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BLVD.
MINEOLA, NEW YORK 11501
(516) 248-0202

Service of a copy of the within

is hereby admitted.

Dated:

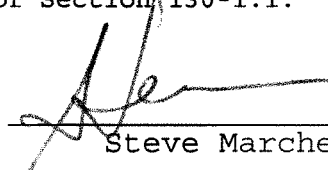
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts
of the State of New York, respectfully affirms the truth of the following
statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her
knowledge, information and belief, formed after an inquiry reasonable under
the circumstances, the presentation of the paper(s) or the contents herein are
not frivolous as defined in Subsection C of Section 130-1.1.

Dated: 1/11, 2019


Steve Marchelos